

BC651071 BC651071

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-17

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Case Number: BC651071 Hearing Date: September 17, 2026 Dept: 734

The following constitutes the Court's ruling on the ex parte application discussed herein, and is posted for the convenience of the parties. The application will not be called for hearing.

Cross-Defendants Herbert

Marshak and Champion Medical Group apply ex parte for an order specially setting a hearing on their motion to dismiss the cross-complaint. The Court has reviewed the ex parte application and the opposition papers filed by Cross-Complainant Sahibzada Aasim Akhtar ("Akhtar"), and finds the matter suitable for decision in chambers without argument.

Cross-Defendants contend that

an order advancing the hearing on their motion to dismiss is appropriate, because "the Court's irregularly short setting of the trial on 8/6/26" leaves inadequate time for the motion to be heard before trial.

A partial review of the

procedural history of this case is relevant to the ex parte application.

This case was previously

assigned to the Honorable Holly J. Fujie in Department 56. On November 21, 2025, Judge Fujie held a hearing on two motions filed by Defendant/Cross-Complainant Akhtar: (1) a motion for reconsideration, and (2) a motion to set case for jury trial. Judge

Fujie denied the motion for reconsideration and granted the motion to set the case for jury trial. The minutes of the

November 21, 2025 hearing indicate that the parties present waived notice, and memorialize the following information about trial setting:

Final

Status Conference is scheduled for 10/06/2026 at 08:30 AM in Department 56 at

Stanley Mosk Courthouse.

The

Court orders counsel to prepare a joint exhibit list (with stipulations or objections noted as to each exhibit), a joint witness list (with time estimates for each side and totals), a joint verdict form, a joint set of final jury instructions, and a joint statement of the case. Motions in limine must be fully briefed. Counsel are ordered to comply with Department 56 Local Rules.

All

counsel are to personally appear for the Final Status Conference hearing.

Trial

and exhibits binders are to be submitted directly in the courtroom by October 5, 2026.

Jury

Trial /Court Trial is scheduled for 10/19/2026 at 09:30 AM in Department 56 at Stanley Mosk Courthouse.

(Nov. 21, 2025 minute order at 5.) The Court's review of the file in this matter does not appear to indicate any order issued in Department 56 modifying the trial schedule.

On January 6, 2026, the Clerk of the Court issued a notice of reassignment, indicating the case was reassigned from Judge Fujie to the Honorable Steven A. Ellis, with the case remaining in Department 56.

On February 2, 2026, Akhtar filed a peremptory challenge directed at Judge Ellis pursuant to Code of Civil Procedure section 170.6. Also on February 2, 2026, the Clerk sent notice to the parties that the case was reassigned to Department 76 (the "Reassignment Order"). Nothing in the Reassignment Order indicated that any dates previously scheduled in Department 56 were vacated, but the Clerk in Department 56 served a separate order vacating the hearing on Akhtar's motion for reconsideration that had been set in Department 56.

On March 16, 2026, this Court issued a notice of case management conference, indicating that a case

management conference was scheduled for August 6, 2026 at 8:30 a.m. in Department 76.

On August 6, 2026, none of the parties appeared for the case management conference. None of the parties had filed a case management statement in advance of the case management conference as required by Rule of Court 3.725. The Court therefore could only guess at the status of the case and the parties' intentions, and was unable to ask the parties any questions concerning the trial readiness of this very aged case. The Court's obligation to manage its docket and to ensure timely completion of cases requires that the Court actively manage its trial calendar and avoid the rescheduling of hearings. Since this case had preexisting dates for the final status conference and trial that had been set in Department 56, the Court attempted to match those dates in its own trial calendar. The Court ordered the Clerk to give notice of an October 6, 2026 final status conference date, and an October 29, 2026 trial date.

In light of this procedural history, Cross-Defendants' assertion that the Court "irregularly" set a trial date on short notice is puzzling. The October 19, 2026 trial date was set ten months ago in Department 56. Any party that was unable to prepare for that date had the ability to request a continuance in Department 56 before the case was transferred, or to request a continuance from this Court. None of the parties even appeared for the August 6, 2026 case management conference to inform the Court of any developments requiring the Court's attention.

Based on Cross-Defendants' representation that there is a good faith basis for a dispositive motion, the Court on its own motion VACATES the October 6, 2026 final status conference and October 29, 2026 trial dates. A trial setting conference is set for December 15, 2026 at 8:30 a.m. The ex parte application is DENIED; Cross-Defendants may reserve hearing on a motion to dismiss via CRS.